What Is A Will?

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Key Takeaways

- You can write your own will and change it anytime you wish
- CPF savings are not covered under a will and are not part of an estate
- A will helps you give your money to the people you feel need it most

A will is a written document that sets out your instructions and wishes on how you want your estate (your money, property, possessions and other assets) to be distributed after your death.

You may want to speak to a lawyer to make sure your will is valid. It can be altered at any time.

Note: CPF savings are not covered under a will and not part of an estate. They are protected from creditors' claims to it. You are strongly encouraged to make a CPF nomination so that your intended beneficiaries can have quick access to the funds.

Must You Have A Will?

Writing a will is essential if you have dependents like young or disabled children or elderly parents.

Your will can be as simple or as detailed as you want. It holds your instructions on whom to care for your minor children or parents and how you want your estate to be divided when you pass away. This makes it much easier for your loved ones to settle your estate at a difficult time.

If you are single, you may want to ensure your parents or even your pets are well taken care of. A will makes sure your wishes are carried out without fuss.

What Goes Into A Will

Your will should clearly state who is going to:

- Inherit your estate (your beneficiary or beneficiaries)

- Care for your children under 21 (your children's guardians)
- Carry out your wishes (your executor or administrator)

Your will should also set out how you want your assets disposed of and what happens if your beneficiaries pass away before you.

Make Sure Your Will Is Legal

For your will to be legally binding, you must:

- Be over 21 years old
- Be of sound mind
- Sign your will in the presence of two witnesses over 21
- Have it signed by both witnesses in your presence

A will can be revoked by a later will. It is nullified or cancelled when you marry or remarry. Witnesses must not be beneficiaries or spouses of beneficiaries under the will.

If you need advice or help preparing your will, you can seek legal advice or talk to a financial adviser.

What If There Is No Will?

If you pass away without making a will in Singapore, your assets will be distributed according to intestacy laws which may not be in line with your wishes.

For example: If your spouse and children are financially self-reliant, you may want to provide for your elderly parents, disabled or unemployed siblings, grandchildren or even grandparents. Without a will, your wishes may not be fulfilled.

For more information, visit My Legacy for the answers to the most Frequently Asked Questions (FAQs).

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